Minutes of the Meeting held On October 12, 2006

Pine Valley Special Service District Meeting (PVSSD)

Attending Members: Mary Esther Putnam (Chairwoman); Gerald Schiefer (VC); Dall Winn; Ron Snow

Absent Member: Ryan Gardner

Also Present: Steve Robinson (Fire Chief), George Cropper (Treasurer) and Beverly Udell (Secretary)

Guests: Tamara Phillips, Susan Black, Bob Herpel, Shawn (?) and Barbara Gonce, Jeff Gardner; John Davis; Barbara Davis, Tony Romney, ReNae Romney, Jim Jensen, Glenn DeMille, John Nichols, Linda Nichols, Fermin Esparza, Violet Esparza, Elaine Lindblom (?), Gae Robinson, Scott Vance, Tim Graham, Dan Kenworthy, Don Wright

1. General Business:
a/b. Welcome – The meeting was called to order at 6:00 P.M. with the opening being the Pledge of Allegiance.

c. Pine Valley Zoning – Bob Herpel brought up the discussion regarding the Stucki plans for a subdivision in the Meadows. Bob explained how he was on the Pine Valley Historical Advisory Committee which created the General Plan for Pine Valley several years ago. He showed a copy of that General Plan to Mary Esther and explained what it was. Bob shared that he had gone to a County Planning meeting and brought up a zone ordinance statement from "Building, Zoning and Subdivision, Chapter 3, Regulations of Washington County, 11-B-1 #F" of which he also gave a copy to Mary Esther. Dave Everette (spelling?) of the Planning Commission addressed this during the Planning Commission meeting and they said that they have generally ignored that in the zoning law in the past. Mary Esther said that the only thing we can go by is what the General Plan says. In order for us to get a message to the Commissioners with our feelings, we would have to quote the General Plan for our valley. Gerald had already sent a letter to the Commissioners regarding this topic and how the PVSSD felt the proposed subdivision should not be allowed to go forward, but even though the letter said it was from the Board, it might not have looked like it truly was because Gerald was the only one that signed the letter (he had signed it as Vice Chairman of the Board). At the last SSD meeting, we had discussed this same zoning issue and Ron at that time suggested we compose a letter, which Gerald did. Gerald read the letter he had drafted so the audience could hear it. The Planning Commissioners had indeed recommended that the PVSSD send such a letter of their feelings. The letter was needed based on the fact that we don't have a City Committee to represent us. The Commissioners have now requested another letter. Ron mentioned that the survey sent to all property owners before the creation of the General Plan

showed that 88% wanted the Valley to stay agricultural. Ron asked if the property in question had been rezoned to accommodate the Stucki's proposed subdivision (it is currently zone as "agricultural"). The answer was that it has not been rezoned, but legally it would need to be before the County could approve the subdivision. Susan Black told the Board that she has copies of two other letters of opposition that were sent to Deon at the County Office (one from Maria and Brian Ochs and one from Sharon Northington). Tamara Phillips shared that the County is looking into changing the ruling on this zoning at the exact same time that they would rule on the building of the subdivision. Steve said that comments from the Planning Commission said that "yes" zoning should be changed first, but in the past though, people have rezoned their property and then later did something different than what they had told the County they would do with the property. The County often gets bit by such tactics. Glen Demille said that 6-7 years ago, the County did research on the septic systems in Pine Valley and their report showed that past 100 North there should not be septics allowed. Ron remembered that Kurt Gardner (County Building Inspector) said that septic tanks could be placed further than100 feet from the creek. Mary Esther said that professional perk tests would have had to have been done by the Stuckis and turned into the state. The County has to comply with the results of those perk tests. Linda Nichols stated that at the meeting the other day (the one the Stuckis held in front of the post office) the Stuckis had claimed that they did the perk tests, but that Bruce Bergeson thought they performed the tests at the wrong time of the year, as in not during flood season. Steve declared that the Southwest Public Health District in St. George would have the dates and results of those perks tests if someone cared to go look at them. It would be a matter of public record. Bob said that as a resident of Pine Valley, he did call Robert Beers at the Southwest Public Health Department and received the dates of the test, which was March 5th 2005, showing that they were indeed done during the flood year. Bob had originally thought also that the test was done during a drought year, but now he believes that he was wrong. John Nichols said that there were some questions about where the "Meadows" actually started and ended. Larry Higgins can show where the wetlands start. Gerald said that Bruce Stucki had already said he was going to contact Larry. John claimed that the Stucki's continue to say that because the land has been irrigated, that it makes it a "meadow" and therefore improved land. Ron felt that everyone would agree that we can live with the conditions of the General Plan. Mary Esther felt that people should be able to have the right to do with their own property as they want, but not if it goes against zoning laws. As the SSD, we need to comply and enforce what the law says. Ron said that as long as the zoning law is on record, they need to follow that. Tony Romney asked about sending out a new survey to find out what property owners now want. But the Board said that there is not a need for that because it was only a couple of years ago that the original survey was done, plus the time and costs involved wouldn't make it feasible to do again. Susan asked if the County had adopted our General Plan. The answer is Yes. Bob suggested that anyone wishing to comment should do so through an attorney, along with a certified letter. He felt that the County Commissioners would possibly pay more attention to comments if an attorney was involved. The Planning Commission did say that while it is nice to receive comments, they certainly are not bound to follow what the comments suggest. But the law is the law, and unless they change the law, they will have to comply with it. For a zoning change, they would have to contact all adjacent property owners. Bob agreed, but felt they were trying to circumvent that as some of the property owners have not been contacted. John asked about the "no building" area of the meadows by the creek. Mary Esther then suggested again that

another letter be drafted from the PVSSD and she asked the audience if they would trust the Board to fairly represent their feelings on the subject. The answer from the audience was Yes. Susan reminded everyone that the County wants letters based on facts and laws, not on emotion.
* Gae said that Ron Whitehead (works for the County Engineers) said that he would push for curbs, gutters and sidewalks. Steve said the County is now recommending curbs, gutters and sidewalks because they would help stave off flooding into homes. They are forcing other communities all the way to New Harmony to put them in.
* Bob said that the PV Spring Creek Pines subdivision is proposing a phase #4, which will be required to put in the curbs, gutters and sidewalks. John Nichols felt that we don't want them. Most people in Pine Valley like the dirt roads and country feeling. We don't want to look at cement. Steve said that for the County to enforce it, he thinks that the communities should be able to vote on it. Bob stated that the Stucki's do not want the curbs, gutters or sidewalks
* Fermin Esparza said that the Stucki's claim that so far no one has opposed their subdivision plans. Bob said that they claimed to have asked the folks who live at the old store property. Jean Davis said that someone asked her what she thought when she was at the post office one day. She told them that it probably wouldn't matter what she thought because they will probably do what they wanted to anyway. So far, no one has contacted her at her home. Tony said that if residents are serious, they would indeed need to engage an attorney and have a letter from that attorney go to the County. It could be costly, but he believes that should be done. Bob suggested that the Board take the names from the folks attending tonight's meeting and add them to the Board letter being written. Linda said that the Stucki's say that they have indeed talked to residents of Pine Valley. Gerald said what they did do was call people to show up for their meeting at the Post Office. Linda shot back that it wasn't really a meeting because the Stucki's basically just told of their plans, but she felt they didn't really open it up for much discussion. Glen asked why we should have to hire an attorney when the zoning law is already the law? Steve said that the County has tabled the motion until Oct. 24th (two weeks) and placed it on the agenda as an action item (meaning they will vote on it.) The faster that opposing views are given to the County, the better off they will be. Bob asked if the County will still allow discussion before the vote. Steve answered that they would, but they are also allowed to cut off the discussion at any time they wanted. Barbara Davis asked if everyone should send letters of their own? Mary Esther said they should, but only if they are rational and not emotional. Steve said that the letters from adjacent property owners within 500 feet will carry the most weight. Dall said that lots of energy (two years worth) was put into the making of the General Plan. In the original letter from Gerald, Dall felt that it talked of vague issues, but the next letter should include quotes from the General Plan so they have something to base it on. Beverly asked if the Commissioners could change the General Plan. The answer is that while they can't actually change it, they don't have to follow it to the letter either because it is more of a guideline. Gerald also suggested that maybe the old members of the Pine Valley Historical Advisory Committee (the folks that drew up the General Plan) should reconvene and write their own letter to the Commissioners. Mary Esther wanted to remind everyone that we are NOT taking on any individuals. We love everyone and everyone is welcome in Pine Valley. We are just trying to preserve the integrity of Pine Valley.

d. Pine Valley Building Permits Reviewed: None

e. Board Member Reports: Gerald: The Sheriff's Deputy came to the last SSD meeting. He claimed that right now there is not a County ordinance in place concerning the ATVs. The signs that are posted in Pine Valley are therefore technically illegal, but since the signs are up there is an enforcement issue. Mary Esther is going to speak to Jim Eardley and ask that the signs be removed. Gerald went on to say that the OHV law states that vehicles that are not registered as street legal shouldn't be used on any public road because they are OFF road vehicles. He said that the law also states that anyone under 18 must wear a helmet and have a driver's license.

Ron: None

Dall: None

f. Fire Chief's Report- Steve: The fire restrictions have been removed for the time being. Someone would still need to get a permit to enable them to do any open burning. Even with a permit, if their fire were to get out of hand, they are still responsible and liable. It is considered a Class B Misdemeanor with a fine of $1000 if someone burns without a permit.
* Bob Herpel mentioned that he spoke with Bevin and brush piles on Forest land might be brought out from under the trees. Gerald responded that it is the Forestry's job to figure out how they are going to do those burns since it is on their land. Bob asked if there was any type of salvage rights to the wood. Gerald explained that currently there are people who are illegally taking the wood. The Forestry Dept. has the wood piled in a certain way to keep their burning safe.

g. Treasurer's Report – George: None

At 7:45 PM, Dall moved for the meeting to adjourn. Ron seconded.

The next Board meeting will be held on Wednesday, November 1, 2006 at 6:00 P.M.